

DEPARTMENT OF THE NAVY

NAVSUP WSS

700 ROBBINS AVENUE PHILADELPHIA PA 19111-5098

Justification for Other Than Full & Open Competition

1. Contracting Activity

Contracting Activity	NAVSUP WSS - Philadelphia	Type	A1				
Folder #	24130-0019	PD #	PDEK4400846014				
Item Manager	Moffatt, Kyle	Work Function	Logistics Management Specialist	Phone	[REDACTED]	Code	N52212
Technician	Collington, Wayne	Work Function	Equipment Specialist	Phone	[REDACTED]	Code	N5221.ES
Buyer	Hojnowski, Sara	Work Function	Contract Specialist	Phone	[REDACTED]	Code	n731.49

2. Description of the Action Being Approved

Description Negotiation and award of a contract through other than full and open competition.

3. Description of Supplies/Services

This J&A covers the acquisition of the following

☒ Spares ☐ Repair/Overhaul ☐ Modification ☐ Management ☐ Piece Parts ☐ Data Report

Nomenclature	TRANSDUCER SUBASSEMBLY,SONAR	Quantity	1		
NSN	5845-145762319	Cage Code			
P/N	44030786AD	Unit Price	[REDACTED]		
Option	N	Option %		Days	
Estimated Value	[REDACTED]				
Ship To					

Period of Performance: Expected Final Delivery Date

08/22/2025

4. Statutory Authority Permitting Other Than Full & Open Competition

This J&A is based upon the authority of 10 USC 3204(A) (1), only one or a limited number of responsible sources will satisfy agency requirements, as implemented by FAR 6.302-1

5. Rationale Justifying Use of Cited Authority

A/RMC 3

Acquire, for the second or subsequent time, directly from the actual manufacturer.

A/RMSC D

The data needed to acquire/repair this part competitively is not physically available, it cannot be obtained economically, nor is it possible to draft adequate specifications or any other adequate, economical description of the material for a competitive solicitation. A/RMCS 3, 4, or 5 are valid.

This acquisition will be solicited to

Thales Underwater System (F8294) Per JDRS, subject item has been deemed a Critical Application Item (CAI), thus limiting qualified sources. The acquisition of this item will be solicited to Thales Underwater Systems (F8294) because they are currently the only capable source with the technical data required to manufacture, test and certify this item prior to unit delivery and are the only approved manufacturing source identified in the JDRS CIM record. All alternate sources must qualify IAW the DCA's procedures, as approved by NAVSUP WSS Source Development department prior to contract award. Since the Navy does not possess any data such as drawings, specifications, and/or test equipment/procedures, a full and open competitive solicitation cannot be supported. NAVSUP-WSS must procure these items from Thales Underwater Systems (F8294).

6. Description of Efforts Made To Solicit Offers From as Many Offerors as Practicable

15 MAR 2019 Class Waiver of the Requirement to Post a Request for Information or Sources Sought Notice applies to this requirement

The proposed contract action was synopsisized on the government-wide point of entry on

10/24/2024

and as a result

Market research was conducted in accordance with far part 10. The results of the market research conducted (or the reason(s) market research was not conducted) are as follows

The latest configuration has been checked and all records (ITIMP, JDRS/ASE, etc.) have been properly aligned, identified, and documented. This item has been deemed a Critical Application Item, thus limiting qualified sources. Currently, Thales Underwater Systems (F8294) is the only approved source at this time. The data necessary to solicit repair of this item from sources other Thales Underwater Systems (F8294) are not physically available and uneconomical to obtain. The available technical data is insufficient for the development of new sources. Source Development Department files indicate no Source Approval Request (SAR) has been received from any party interested in becoming an approved source. Thales Underwater Systems (F8294) is the only approved source at this time.

7. Determination of Fair And Reasonable Cost

The contracting officer determines that the anticipated cost to the Government of the supplies covered by this J&A will be fair and reasonable.

8. Actions to Remove Barriers to Future Competition

For reasons set forth in Paragraph (5 & 6), NAVSUP WSS has no plans at this time to compete future contracts for the subject item covered by this document. If another potential manufacturing source emerges, NAVSUP WSS will assess whether competition for future requirements is feasible. Also, future requirements will be advertised on the government-wide point of entry.

Previous J&A

Previous J&A Available in Workflow Pro

9. Any Other Facts Supporting Other Than Full & Open Competition

N/A

History

Created By	Kyle Moffatt	Work Function	Logistics Management Specialist	Created Date	08/22/2024 22-AUG-24
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I certify that the facts and representations under my cognizance which are included in this J&A are complete and accurate to the best of my knowledge and belief

Requirements Cognizance Signature	Kyle Moffatt	Work Function	Logistics Management Specialist	Requirements Cognizance Signature Date	10/07/2024
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I certify that the facts and representations under my cognizance which are included in this J&A are complete and accurate to the best of my knowledge and belief

Technical Cognizance Signature	Wayne Collington	Work Function	Equipment Specialist	Technical Cognizance Signature Date	10/07/2024
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I certify that the facts and representations under my cognizance which are included in this J&A are complete and accurate to the best of my knowledge and belief

Source Validation Cognizance Signature	Johnny Brown	Work Function	Equipment Specialist	Source Validation Cognizance Signature Date	10/07/2024
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I certify that this J&A is accurate and complete to the best of my knowledge and belief

Contracting Officer Certification Signature	Ashley Vandiver	Work Function	Contract Specialist	Contracting Officer Certification Signature Date	11/13/2024
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I certify that the facts and representations under my cognizance which are included in this J&A are complete and accurate to the best of my knowledge and belief

Competition Advocacy Review And Concurrence Signature	Thomas Dimarcantonio	Work Function	Competition Advocate	Competition Advocacy Review And Concurrence Signature Date	11/27/2024
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I certify that this J&A is legally sufficient to the best of my knowledge and belief

Legal Sufficiency Review Signature	Lisa Wood	Work Function	Attorney	Legal Sufficiency Review Signature Date	12/02/2024
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I certify that this J&A is accurate and complete to the best of my knowledge and belief

Approval Required
By Far 6.304

Signature

Ashley Vandiver



Work Function

Contract Specialist

Approval Required
By Far 6.304
Signature Date

12/03/2024